

AGREEMENT TO PURCHASE AND SELL

This Agreement to Purchase and Sell (“**Agreement**”) is made as of _____, 2020 (the “**Effective Date**”) by and between:

MERVINE HERNANDEZ FAMILY ESTATE, ETAL, whose address is _____, its successors and assigns and represented herein by _____, its _____. (hereinafter referred to as “**Seller**”);

and

BELLE REALTY OF LAFAYETTE, LLC a Louisiana limited liability company whose address is PO Box 63220, Lafayette, Louisiana 70596, its successors and assigns and represented herein by _____, its duly Authorized Representative. (hereinafter referred to as “**Purchaser**”).

RECITALS

WHEREAS, Seller is the owner of certain immovable property located in Lafayette Parish, Louisiana; and

WHEREAS, Seller is desirous of selling the aforesaid immovable property upon certain terms and conditions; and

WHEREAS, Purchaser is desirous of purchasing the aforesaid immovable property upon certain terms and conditions; and

WHEREAS, Seller and Purchaser wish to set forth their understandings and agreements with respect to the sale and purchase of the aforesaid immovable property.

NOW, THEREFORE, in consideration of the foregoing, the mutual covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. **SALE AND PURCHASE AGREEMENT.** Seller represents and warrants that it is the owner of the Property (as hereinafter defined) and that it has the authority to enter into this Agreement. Seller hereby agrees to sell the Property (as hereinafter defined) to Purchaser all on the terms and conditions set forth herein. Purchaser hereby agrees to purchase the Property (as hereinafter defined) from Seller all on the terms and conditions set forth herein.

2. **DESCRIPTION OF THE PROPERTY.** The immovable property has a municipal address of **120 Leonie St., Lafayette, LA 70506** and is located in the City of Lafayette, Lafayette Parish, Louisiana, together with improvements thereon, all servitudes and easements benefiting such land, all rights of Seller in and to any land lying in road beds, servitudes or other rights of way, all being more particularly described in the legal description attached hereto as **Exhibit “A”** (hereinafter, referred to as the “**Property**”).

3. **PURCHASE PRICE.** In consideration of the sale of the Property, Purchaser shall pay to Seller the aggregate sum of the Appraised Value (as hereinafter defined) of the Property (the “**Purchase Price**”). The Purchase Price shall be paid to Seller, in cash, on the Closing Date (as hereinafter defined), subject to credits and prorations as set forth herein.

3.1. APPRAISED VALUE. For the purposes of this Agreement, the procedure for determining the Appraised Value shall be as follows:

a.) Within five 5) days after the Effective Date of this Agreement, the Seller, on the one hand, and the Purchaser, on the other hand, shall each appoint an appraiser to determine the appraised value of the Property as of the Effective Date (the "Valuation Date"). In order to qualify as an appraiser, such person must be (i) a certified appraiser, and (ii) must have at least 15 years experience as a certified appraiser. Any appraiser shall be directed to render an appraisal report within thirty (30) days of his/her respective appointment as appraiser.

i. If the Seller and Purchaser each happen to select the same appraiser, then that appraiser shall render a written report determining the appraised value as of the Valuation Date. The appraised value contained in the aforesaid written report or written report of the appraiser, shall constitute the Appraised Value of the Property.

ii. If the Seller and Purchaser select different appraisers, each appraiser shall render a written report determining the appraised value as of the Valuation Date. If the two appraisers agree upon the appraised value, they shall jointly render a single written report stating that value, which value shall constitute the Appraised Value. If the appraisers cannot agree upon the appraised value of the Property, they shall each render a separate written report and shall appoint a third appraiser, who shall determine the appraised value as of the Valuation Date, and shall render a written report of his/her opinion thereon. Each party shall pay the fees and other costs of the appraiser appointed by that party, and the fees and other costs of the third appraiser shall be shared equally by both parties. Each appraiser shall be directed to render an appraisal report within thirty (30) days of his/her respective appointment as appraiser. The appraised value contained in the aforesaid joint written report or written report of the third appraiser, if any, shall constitute the Appraised Value of the Property; provided, however, that if the appraised value of the Property contained in the appraisal report of the third appraiser is more than the higher of the first two appraisals, the higher of the first two appraisals shall govern and be deemed to be the Appraised Value; and, provided, further, that if the appraised value contained in the appraisal report of the third appraiser is less than the lower of the first two appraisers, the lower of the first two appraisals shall govern and shall be deemed to be the Appraised Value.

4. TITLE TO THE PROPERTY. The Property is to be conveyed by Seller by cash sale, free and clear of all liens, mortgages and encumbrances except those which are acceptable to Purchaser, with full warranty of title. Title to the Property shall be fee simple, valid, merchantable, marketable and fully insurable in the opinion of the counsel to Purchaser as of the Closing Date (as hereinafter defined).

5. TITLE INSPECTION. Purchaser shall, at Purchaser's expense, cause Seller's title to be abstracted and examined by the Closing Agent (as hereinafter defined) and thereafter Purchaser and Closing Agent deliver to Seller, within one hundred sixty (60) days after the Effective Date, a letter setting forth any and all objections to Seller's title revealed by the examination. In the event Purchaser states that the condition of title is not acceptable, Purchaser shall also inform Seller of the specific objections to title, and Seller may, in Seller's sole discretion and at Sellers sole cost and expense, promptly undertake to correct all objections of Purchaser's counsel. Further provided however, that Seller shall have the right to satisfy Purchaser's title objections by delivering to Purchaser within the time frame set forth hereinafter a standard American Land Title Association owner's and mortgagee's title insurance policies issued by a nationally recognized title insurance company which either (i) eliminates Purchaser's title objections from the Schedule B exceptions to coverage of the policy or (ii) affirmatively insures Purchaser against any loss whatsoever resulting from any claim arising out of or in

connection with Purchaser's objections.

In the event that Seller does not satisfy all such title requirements on or before sixty (60) days from the Effective Date, Seller and Purchaser may agree (a) to extend the time for correcting such title objections (and the Closing Date, if so required) to a mutually acceptable date; or (b) Purchaser may, in its sole discretion (i) accept Seller's title with such objections, or (ii) terminate this Agreement by written notice to Seller & Escrow Agent. The Escrow Agent, once notified of Purchaser's election not to proceed as provided herein, shall promptly (within five (5) business days from the date of the notification) cause the return of the Deposit (as hereinafter defined) to Purchaser, and Purchaser and Seller shall have no further obligations to each other.

In the event Purchaser does not provide to Seller written notification of title objections as provided in this Paragraph 5, then Purchaser shall be deemed to have accepted the title to the Property without objection and the condition set forth herein shall be considered satisfied.

6. **SURVEY.** Purchaser may, at Purchaser's option, cause a survey of the Property to be prepared and shall deliver to Seller, within sixty (60) days after the Effective Date, a letter setting forth any and all objections revealed by the survey. Once notified of such survey objections, Seller may, in Seller's sole discretion and at Seller's sole cost and expense, promptly undertake to correct all survey objections raised by Purchaser.

In the event that Seller does not satisfy all such survey requirements on or before sixty (60) days from the Effective Date, Seller and Purchaser may agree to (a) extend the time for correcting such survey exceptions (and the Closing Date, if so required) to a mutually acceptable date; or (b) Purchaser may, in its sole discretion, (i) accept the Property with such survey exceptions; or (ii) terminate this Agreement by written notice to Seller & Escrow Agent. The Escrow Agent, once notified of Purchaser's election not to proceed as provided herein, shall promptly (within five (5) business days from the date of the notification) cause the return of the Deposit (as hereinafter defined) to Purchaser, and Purchaser and Seller shall have no further obligations to each other.

In the event Purchaser does not provide to Seller the written notification of the survey objections as provided in this Paragraph 6, then Purchaser shall be deemed to have accepted the survey of the Property without objection and the condition set forth herein shall be considered satisfied.

7. **FEASIBILITY CONTINGENCY PERIOD.** Purchaser shall have a period of sixty (60) days ("**Feasibility Contingency Period**") beginning with the next business day following the Effective Date (as set forth in Section 17.6 below) to arrange satisfactory financing for the purchase of the Property; to conduct an inspection of the Property and engineering and architectural studies of the Property and any improvements located or to be located on the Property; to evaluate the current zoning and other restrictions as to the use of the Property; to conduct an environmental assessment of the Property; to perform any and all other studies or analyses which, in the sole discretion of Purchaser, are necessary or incidental to the purchase of the Property. Seller shall provide Purchaser reasonable access to the Property to enable Purchaser to timely perform the aforesaid studies and tests. Purchaser shall have the right to extend the Feasibility Contingency Period for one consecutive additional thirty (30) day period by giving Seller notice prior to the expiration of the initial sixty (60) day period set forth above.

In the event that Purchaser for any reason whatsoever, in its sole and unqualified discretion, elects during the Feasibility Contingency Period not to proceed with closing of the purchase transaction contemplated herein, then Purchaser shall notify Seller and the Escrow Agent in writing of its election not to proceed on or before the expiration of the Feasibility Contingency Period. Escrow Agent, once notified of Purchaser's election not to proceed as provided herein, shall promptly (within five (5) business days from the date of the notification) cause the return of the Deposit (as hereinafter defined) to Purchaser, and Purchaser and Seller shall have no further obligations to each other.

In the event Purchaser elects on or before the expiration of the Feasibility Contingency Period to proceed with the Closing of the purchase transaction contemplated herein, then Purchaser shall notify Seller in writing of its election to proceed and, upon such notification, the conditions of this paragraph shall be considered satisfied. In the event Purchaser does not notify Seller on or before the expiration of the Feasibility Contingency Period of Purchaser's election not to proceed with the closing of the purchase transaction contemplated herein, then Purchaser is deemed to have waived the contingencies set forth herein and the conditions of this paragraph shall be considered satisfied.

Notwithstanding anything to the contrary contained in this Agreement, if during the Feasibility Contingency Period the results of any environmental assessment reveal the existence or possible existence of any environmental hazard or an environmentally hazardous condition, then Purchaser shall advise Seller in writing of such environmental hazard or environmentally hazardous condition. Once notified of such environmental hazard or environmentally hazardous condition, Seller may in Seller's sole discretion and, at Seller's sole cost and expense promptly undertake the remediation of such environmental hazard or environmentally hazardous condition.

In the event Seller does not properly remedy (to the satisfaction of Purchaser in its sole discretion) the environmental hazard or environmentally hazardous condition on or before one hundred eighty (180) days from the Effective Date, Seller and Purchaser may agree to (a) extend the time for remedying such environmental hazard or environmentally hazardous condition (and the Closing Date, if so required) to a mutually acceptable date; or (b) Purchase may, in its sole discretion, terminate this Agreement by written notice to Seller and Escrow Agent. The Escrow Agent, once notified of Purchaser's election not to proceed as provided herein, shall promptly (within five (5) business days from the date of the notification) cause the return of the Deposit (as hereinafter defined) to Purchaser, and Purchaser and Seller shall have no further obligations to each other.

8. CLOSING DATE. In the event Purchaser does not elect to terminate this Agreement in accordance with Sections 5, 6, or 7 hereof, the sale transaction contemplated herein shall take place within sixty (60) days after the expiration of the Feasibility Contingency Period (the "**Closing Date**").

For purposes of this Agreement, "Closing" shall be the event in which Purchaser delivers to Seller or a closing attorney or agent, the Purchase Price and Seller simultaneously deliver to Purchaser or such closing attorney or agent a fully executed, witnessed and notarized document or documents translatable of good and merchantable title to the Property at which time Seller shall deliver to Purchaser possession of the Property and Seller shall be relieved of any future responsibility for the Property subsequent to the Closing Date.

Seller shall bear their costs of closing, including Seller's attorney's fees. Purchaser shall bear its costs of closing, including Purchaser's attorney's fees, the title insurance premium for an lender's policy and any additional title insurance premiums, recordation costs and any transfer taxes or documentary stamp costs.

9. DEPOSIT. Purchaser has delivered to American Title Company, L.L.C., 201 Rue Beauregard, Lafayette, LA 70508 (the "**Escrow Agent**") a deposit in the total amount of ONE THOUSAND and 00/100 Dollars (\$1,000.00 (the "**Deposit**"). The Escrow Agent shall hold the Deposit, in escrow, subject to the provisions of this Agreement. The Deposit shall not be considered earnest money.

On the Closing Date, Purchaser shall receive a credit toward the Purchase Price for the amount of the Deposit unless otherwise provided herein.

10. REAL ESTATE BROKERAGE COMMISSION. Seller and Purchaser hereby represent and warrant to each other that neither party has engaged the services of a real estate broker or real estate brokerage

firm in connection with the transaction contemplated by this Agreement.

11. PROPERTY TAXES. The Seller hereby warrants that all real and personal property ad valorem taxes and other assessments for the three (3) years prior to the year 2020 have been paid by Seller.

12. POSSESSION. Possession of the Property shall be delivered to Purchaser on the Closing Date, unless otherwise agreed to in writing by both parties.

13. PRORATIONS. Any expenses with respect to the Property shall be prorated at and as of the Closing Date (with the day of Closing belonging to Purchaser) based on actual collections and expenses incurred.

14. DEFAULT.

14.1 Should Seller not fulfill its obligations under this Agreement, Purchaser shall have the right (a) to terminate this Agreement, or (b) to enforce specific performance of the obligations of Seller to sell as specified in this Agreement. In the event Purchaser elects to terminate this Agreement as set forth in this Section 14.1 and notifies Seller and Escrow Agent in writing of its election to terminate, Purchaser's Deposit shall be returned in full, and Escrow Agent shall deliver same to Purchaser within five (5) business days of the date of the notice of termination from Purchaser.

14.2 Should Purchaser not fulfill its obligations to purchase under this Agreement, Seller shall have the right (a) to terminate this Agreement, or (b) to enforce specific performance of the obligations of Purchaser to purchase as specified in this Agreement. In the event Seller elects to terminate this Agreement as set forth in this Section 14.2 and notifies Purchaser in writing of its election to terminate, the Deposit shall be forfeited by Purchaser as full and final liquidated damages.

15. AS-IS CONDITION. The Property is being sold and transferred to Purchaser, as-is, where-is, without any warranty, expressed or implied except as specifically provided in the Agreement.

16. GOVERNING LAW. This Agreement to Purchase and Sell shall be governed by and construed in accordance with the laws of the State of Louisiana. The parties agree that the venue for any action instituted pursuant to this Agreement shall be Lafayette, Louisiana.

17. MISCELLANEOUS. It is further agreed as follows:

17.1 Condemnation. Seller warrants that the Property is not the subject of any pending expropriation, condemnation or similar proceeding and, that Seller has not been advised of any threatened or proposed proceedings.

17.2 Violations of Law. To the knowledge of Seller, the Property is not in violation of any law, municipal ordinances, zoning ordinances, or other legal requirements having jurisdiction over or applicability to the Property.

17.3 Existing Liabilities. Seller warrants that neither the Property nor Seller is subject to any pending or threatened litigation or claims and that any claims or liabilities which occur prior to the Closing Date shall be the responsibility of Seller and this warranty shall survive Closing. Seller agrees to hold Purchaser harmless from any and all claims which may be brought after the Closing Date but which arose prior to the Closing Date.

17.4 Flood Zone. The Seller warrants that to the best of Seller's knowledge, the Property is not located in a Special Flood Hazard Area.

17.5 Notice. All notices required hereunder shall be in writing and served by hand delivery, Federal Express, or by certified mail, postage prepaid, at the addresses set forth below until notification of a change of such address.

To Seller:

Montgomery Living Trust of 1996

To Purchaser:

Belle Realty of Lafayette, LLC
c/o Adam Abdalla
Po Box 62230
Lafayette, Louisiana 70596

American Title Company, L.L.C.
c/o Katherine Currie
201 Rue Beauregard
Lafayette, LA 70508

17.6 Survival of Representations. All representations and warranties of Seller and Purchaser contained in this Agreement will survive the Closing.

17.7 Seller's Authority. Seller hereby represents and warrants that the execution, delivery and performance of this Agreement are within the powers of Seller and all requisite authorization actions have been taken and all consents required have been obtained by Seller prior to the execution of this Agreement.

17.8 Purchaser's Authority. Purchaser hereby represents and warrants that the execution, delivery and performance of this Agreement are within the powers of Purchaser and all requisite authorization actions have been taken and all consents required have been obtained by Purchaser prior to the execution of this Agreement.

17.9 Entire Agreement. This document constitutes the entire agreement between Purchaser and Seller and supersedes any prior agreements, which are herewith declared null and void, and there are no other agreements, understandings, warranties or representations between Purchaser and Seller, except any written Addenda or Amendments as may be signed by both Purchaser and Seller.

17.10 Binding Effect. This Agreement will inure to the benefit of and bind the respective heirs, personal representatives, successors and assigns of the parties hereto.

17.11 Closing Agent. The Seller and Purchaser hereby agree that the Escrow Agent shall be the closing agent responsible for the closing of the transaction contemplated hereby, including but not limited to the examination of Seller's title to the Property and issuance of any required title insurance policy to Purchaser or Purchaser's lender.

THUS DONE AND PASSED as of _____, 2020 at Lafayette, Lafayette Parish, State of Louisiana.

WITNESSES:

Printed Name: _____

Printed Name: _____

SELLER

Montgomery Living Trust of 1996

By: _____

Its: _____

NOTARY PUBLIC
Printed Name: _____
Bar Roll No. _____

THUS DONE AND PASSED as of _____, 2020 at Lafayette, Lafayette Parish, State of Louisiana.

WITNESSES:

Printed Name: _____

Printed Name: _____

SELLER

Belle Realty of Lafayette, LLC

By: _____

Its: _____

NOTARY PUBLIC
Printed Name: _____
Bar Roll No. _____

EXHIBIT "A"
TO
AGREEMENT TO PURCHASE AND SELL
LEGAL DESCRIPTION